

26NNCV02999 26NNCV02999

County: los-angeles

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[TENTATIVE] ORDER GRANTING PLAINTIFF'S APPLICATIONS FOR WRIT OF POSSESSION

I. INTRODUCTION

This is an action arising from Defendants' alleged default under two Loan and Security Agreements relating to the financing of commercial equipment. Plaintiff PNC Bank, National Association ("Plaintiff") alleges that Defendants Humbert Construction Inc. and Humbertino Arteaga ("Defendants") defaulted on their payment obligations and wrongfully retain possession of the collateral despite Plaintiff's demand for its return.

On April 22, 2026, Plaintiff filed two Applications against each Defendant for Writ of Possession seeking immediate possession of the collateral consisting of a 2026 Bobcat S66 Skid Steer Loader (Serial No. B4SA22294), a 2023 Bobcat S650 Skid Steer Loader (Serial No. B5FE12336), and a 2024 Bobcat UV34 Utility Vehicle (Serial No. B4V40176). The Court addresses both applications in this order.

II. LEGAL STANDARD

To obtain a writ of possession, a plaintiff must show they have the right to immediate possession of tangible personal property and the property is being wrongfully withheld by the defendant. (C.C.P., § 512.010; *Englert v. IVAC Corp.* (1979) 92 Cal.App.3d 178, 184.) A plaintiff must show the probable validity of their claim to possession of the property. A claim has "probable validity" where it is more likely than not that plaintiff will obtain a judgment against the defendant on that claim. (C.C.P., § 511.090.)

The plaintiff must serve the defendant with the summons and Complaint, Notice of Application and Hearing, and a copy of the application prior to the hearing. (C.C.P., § 512.030.)

The application for writ of possession must include "[a] statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there." (C.C.P., § 512.010(b)(4).)

A plaintiff must also post a bond of twice the value of the defendant's interest in the property, unless the Court finds that the defendant has no interest in the property, in which case no undertaking is required. (C.C.P., § 515.010.) "The undertaking shall be in an amount not less than twice the value of the defendant's interest in the property or in a greater amount. The value of the defendant's interest in the property is determined by the market value of the property less the amount due and

owing on any conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant's interest in the property." (C.C.P., § 515.010(a).)

III. ANALYSIS

The Application for Writ of Possession and supporting declaration were personally served on Defendant Humbert Construction Inc. at 14120 Pierce Street, Pacoima, California 91331, and on Defendant Humbertino Arteaga at 9701 Sunland Boulevard, Pacoima, California 91331, on May 3, 2026. The proofs of service reflect that the application and supporting papers were properly served in accordance with Code of Civil Procedure section 512.030 prior to the hearing.

Plaintiff submits the declaration of Michael McGinley, Vice President, Litigation and Recovery for Plaintiff PNC Bank, National Association. McGinley declares that he is the custodian of Plaintiff's business records and has personal knowledge of Defendants' accounts. (McGinley Decl., ¶¶ 1-4.) McGinley provides copies of two Loan and Security Agreements entered into by Defendant Humbert Construction Inc. for the purchase of the collateral, consisting of a 2026 Bobcat S66 Skid Steer Loader (Serial No. B4SA22294), 2023 Bobcat S650 Skid Steer Loader (Serial No. B5FE12336), and 2024 Bobcat UV34 Utility Vehicle (Serial No. B4V40176). (Id., ¶¶ 5, 23; Exhs. 1, 4.) The Agreements grant Plaintiff a security interest in the collateral and the right to immediate possession upon default. (Id. at ¶ 27; Exhs. 1, 3.)

McGinley declares that Defendant Humbert Construction Inc. defaulted under both Loan and Security Agreements (Agreement 592 and Agreement 126) by failing to make the payments due on September 1, 2025. (McGinley Decl., ¶¶ 8, 17.) Plaintiff thereafter accelerated the balances due under the Agreements. (Id., ¶¶ 9, 18.) Plaintiff has demanded return of the collateral, but Defendants have failed to surrender the equipment. (Id., ¶¶ 27-30.) Based on these facts, the Court finds Plaintiff has established the probable validity of its claim to immediate possession of the collateral.

Plaintiff states, based on information and belief, that the collateral is in the possession or control of Defendants Humbert Construction Inc. and Humbertino Arteaga and is currently located at 9701 Sunland Blvd., Los Angeles, California 91040, or such other location known to Defendants. (McGinley Decl., ¶¶ 25-26.) This is sufficient to satisfy the requirement under Code of Civil Procedure section 512.010, subdivision (b)(4).

According to McGinley's declaration, the fair market values of the collateral are \$40,000 for the 2026 Bobcat S66 Skid Steer Loader, \$48,000 for the 2023 Bobcat S650 Skid Steer Loader, and \$16,000 for the 2024 Bobcat UV34 Utility Vehicle, for a total fair market value of \$104,000.00. (McGinley Decl., ¶¶ 23, 31.)

Under California Code of Civil Procedure section 515.010, the amount of the plaintiff's undertaking must be in an amount not less than twice the value of the defendant's interest in the property, or in a greater amount. The value of the defendant's interest in the property is determined by taking the fair market value of the property and subtracting (1) the amount due and owing on any conditional sales contract, (2) the amount due and owing on any security agreement, (3) all liens and encumbrances on the property, and (4) any other factors necessary to determine the defendant's interest in the property. If the court finds that the defendant has no interest in the property, the court shall waive the requirement of the plaintiff's undertaking.

Here, the collateral has an estimated fair market value of \$104,000, while the outstanding indebtedness exceeds that amount (\$110,307.78). Therefore, Defendants have no equity interest in the collateral. Pursuant to Code of Civil Procedure section 515.010, Plaintiff's undertaking is waived.

Based on the foregoing, the Court GRANTS the applications for writ of possession.

IV. CONCLUSION AND ORDER

The GRANTS the applications of writ of possession.

Plaintiff to give notice.

Dated: July 31, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT